



NY REQUIREMENTS FOR THE FACTUAL BASIS OF CRIMINAL PLEAS

(Pleading to a fictitious crime can be a lawful negotiated disposition)

This advisory discusses your ability to negotiate a plea where, for immigration purposes, RIAC advises that it is important for your client to either (1) stay silent on the facts in any colloquy, or (2) plead to a lateral offense, different sub-section or specific conduct which may or may not match the original allegations.

I. THE BASIC RULE

When a defendant enters a bargained for plea to a lesser grade offense than the offense with which he is charged, no factual basis is required for the plea to be valid. *People v. Sharmelle Johnson*, 23 N.Y.3d 973, 975 (2014) (citing *People v. Clairborne*, 29 N.Y.2d 950, 951 (1972)). Indeed, under these circumstances, defendants can even plead to guilty to offenses that do not exist. *Id.*

II. “WHY SHOULD YOUR CLIENT BENEFIT, JUST BECAUSE HE IS A NON-CITIZEN?”

In most cases, RIAC will advise you to pursue a disposition roughly equivalent to what would have been on offer otherwise. We attempt to facilitate your client avoiding dramatically worse additional punishment being imposed (e.g. deportation) than an identically situated U.S. citizen would receive - rather than requesting preferential treatment on account of citizenship status.

This is both a lawful and constitutional objective. See, e.g. *United States v. Thavaraja*, 740 F.3d 253, 262-63 (2d Cir. 2014) (“In determining what sentence is ‘sufficient, but not greater than necessary,’ to serve the needs of justice, 18 U.S.C. § 3553(a) [i.e. sentencing], a district court may take into account the uncertainties presented by the prospect of removal proceedings and the impact deportation will have on the defendant and his family”).

III. MORE DETAILED DISCUSSION

A. STATUTORY RESTRICTIONS ON PLEAS

N.Y. C.P.L. § 220 has some statutory restrictions, including:

- You need consent of the DA & Court to plead to
 - A lesser included on a single count indictment [220.10(3)]
 - Some, but not all of the counts of an indictment [220.10(4)]
 - An indictment, or part of it, in satisfaction of one or more separate indictments [220.30(3)(a)(i)]

- There are specific plea restrictions - both for specified crimes, and for specified crime levels [220.10(5)]. These include things like any plea from an A Fel drug crime indictment must include a B Fel [Sub 5(a)(i)] etc.

These are important to take into account, because:

- A felony guilty plea which strays outside the boundaries of CPL 220.10 is jurisdictionally defective (*see People v. Bartley*, 60 AD2d 283 [1st dep't 1977])
- In contrast, constitutional restrictions which apply to felonies do not necessarily apply to misdemeanors disposed of by plea to a lesser offense (e.g. Disorderly Conduct) under a misdemeanor complaint [where the defendant waived prosecution by information]. *People v Keizer*, 100 NY2d 114 [2003]. However, a plea to another crime of equal or higher grade than that charged is not permitted.

However, you can get around any plea restriction (***if the DA's office is willing to play ball***) by having them file an SCI and dismissing the original indictment.

B. CASE-LAW CONSIDERATIONS

The Court has a lot of power over guilty pleas because:

- There is no constitutional right that a proffered plea of guilty be accepted. *Schroedel v. La Buda*, 264 A.D.2d 136, 138, 707 N.Y.S.2d 252, 254 (2000) (Citing *North Carolina v. Alford*, 400 U.S. 25, 38, 91 S.Ct. 160, 27 L.Ed.2d 162; *Lynch v. Overholser*, 369 U.S. 705, 719, 82 S.Ct. 1063, 8 L.Ed.2d 211) (This case involved statutory plea restrictions esoteric to Murder 1st, but it includes a general constitutional statement)

Instead, the judge has a gatekeeping role in accepting pleas:

- The General Rule: a full inquiry by the judge is highly recommended. There is no statute or case law that dictates a "uniform mandatory catechism" of questions (except for a plea of not responsible because of a mental disease or defect under CPL 220.15) that a judge must ask a defendant who is pleading guilty. *People v Nixon*, 21 NY2d 338, 353 [1967]). But a "full inquiry" is to be "encouraged and highly recommended". *People v Selikoff*, 35 NY2d 227, 242 [1974]. Also, the record must show that the plea was entered knowingly, intelligently, and voluntarily, and that the defendant waived the privilege against self-incrimination, the right to a trial by jury and the right to confront witnesses. *Boykin v Alabama*, 395 US 238, 243, and n 5 [1969]; *People v Tyrell*, 22 NY3d 359, 365 [2013]; *People v Fiumefreddo*, 82 NY2d 536, 543 [1993])
- But... no factual basis needs to be recited at all before accepting a guilty plea. *People v. Myers*, 151 A.D.2d 1002, 1002, 542 N.Y.S.2d 441 (1989) ([W]here, as here, defendant entered a bargained plea to a lesser crime it was unnecessary for him to recite a factual basis for the particular crime confessed")

- Decisional law accepts a negotiated plea of guilty to a "lesser crime technically inconsistent with the crime charged, albeit sharing common elements and involving the same victim". *People v Johnson*, 89 NY2d 905, 908 [1996]; see *People v Adams*, 57 NY2d 1035 [1982] (plea to manslaughter, first degree, in satisfaction of a felony murder count involving the same victim, following the defendant's conviction for the underlying felony); *People v Francis*, 38 NY2d 150, 155 [1975] (a "plea may be to a hypothetical crime, or to a crime for which the facts alleged to underlie the original charge would not be appropriate....Only the events of time, place, and, if applicable, victim, need be the same for the crime pleaded as for the one charged" (internal citations omitted)).

Example Application Of These Considerations

On that basis, (provided you have the consent of the DA) someone accused of Assault 1st (which is very bad for immigration purposes) could:

- Agree to be tried by an SCI, charging immigration-safe crimes, such as:
 - o Criminal Trespass 1st D Fel 140.17(1) [building/deadly weapon] (*despite the incident having occurred in a place where the defendant arguably had had permission to be, or despite there being no objective evidence of a deadly weapon*); or
 - o Criminal Possession of a Weapon 3rd D Fel 265.02(1) [commits CPW 4th / has been previously convicted of any crime] (*despite there being no objective evidence of having previously been convicted of any crime*)
- They would not be statutorily barred from pleading guilty to such an offense (because the plea restrictions go away when the prior charges do); indeed if it was a one-charge SCI, they could plead to it as of right under CPL 220.10(2)
- During a defendant's guilty plea, there need not be any factual colloquy whatsoever in order to sustain a lawful conviction (provided that the defendant convinces the judge it is knowing, voluntary etc.). But whether a judge could nevertheless *require* a predicate factual colloquy as a matter of their discretion (i.e. to make sure they really are guilty of the offense to which they are pleading) falls somewhere between the CPL giving a defendant the right to plead to the entire indictment, and the constitution not granting a right to have a guilty plea accepted.